

24STCV25746 24STCV25746

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-01

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Case Number: 24STCV25746 Hearing Date: July 1, 2026 Dept: 512

HEARING DATE: Weds., July 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Darkwah v. Cucamonga Holdings, Inc., et al. COMP. FILED: 10-03-24

CASE NUMBER: 24STCV25746

NOTICE: OK

PROCEEDINGS: MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

MOVING PARTY: Defendants Cucamonga Holdings, Inc. and Iwanfo Ken Uwagboe

RESP. PARTY: Plaintiff Sherry Darkwah

MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

(CCP §§ 473(d); 473.5)

TENTATIVE RULING:

Defendants Cucamonga Holdings Inc. and Iwanfo Ken Uwagboe's Motion to Set Aside and Vacate Default and Default Judgment is GRANTED.

The defaults entered on July 14, 2025, and default judgments entered on November 19, 2025, are hereby VACATED and SET ASIDE.

Defendants are to file an Answer within 10 days of this order.

The Court schedules Non-Jury Trial for June 14, 2027 at 9:30 a.m. in Department 512 at Stanley Mosk Courthouse.

Final Status Conference is scheduled for June 4, 2027 at 9:30 a.m. in department 512 of Stanley Mosk Courthouse.

Parties demanding a jury trial shall post jury fees within 2 weeks, or the right to a jury trial shall be deemed waived.

Parties are ordered to follow Department 512 courtroom rules for trial preparation and trial documents.

Moving parties are ordered to give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on May 15, 2026 ☐ Late ☐ None

REPLY: None filed as of June 29, 2026 ☐ Late ☒ None

ANALYSIS:

I. Background

On October 3, 2024, Plaintiff Sherry Darkwah ("Plaintiff") filed the instant action against Defendants Cucamonga Holdings Inc. ("Cucamonga") and Iwanfo Ken Uwagboe ("Uwagboe") and Does 1-20, alleging 15 causes of action. (Compl., p. 1.)

On July 14, 2025, default was entered against Defendants.

On November 19, 2025, default judgment of \$210,568.26 was entered against Defendants, reflecting damages and costs. (11/19/25 Default Judgment.)

On May 5, 2026, Defendants filed the instant "Motion to Set Aside and Vacate Default and Default Judgment" (the "Motion").

On May 15, 2025, Plaintiff filed an Opposition.

On May 28, 2026, the Court continued the hearing on the Motion due to clerical error. (5/28/26 Order.)

To date, no Reply to the Motion has been filed.

II. Legal Standard & Discussion

A. Moving Party Position

Defendants seek relief from default and default judgment under Code of Civil Procedure sections 473, subdivision (d), and 473.5, on the grounds Defendants were never served and/or never received actual notice of the lawsuit. Defendants contend that service attempts were to improper addresses for Defendants. In support of the Motion, Defendants submit a declaration from Uwagboe, who is also Cucamonga's registered agent for service; a copy of Cucamonga's service address taken from the Secretary of State's website; and documents filed in the instant matter.

In Opposition, Plaintiff contends that Defendants evaded service, and service to Defendants' alleged proper service address was attempted multiple times and unsuccessful each time. As such, Plaintiff states Plaintiff effectuated proper substituted service on Defendants, and default and default judgment were properly entered against Defendants. In support of the Opposition, Plaintiff submits a declaration by Plaintiff's counsel and documents filed in the instant matter.

B. Analysis

Code of Civil Procedure section 473.5

Code of Civil Procedure section 473.5 provides, in pertinent part:

When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.

(Code Civ. Proc., § 473.5, subd. (a).)

Additionally, the motion "shall be accompanied by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect. The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action." (Code Civ. Proc., § 473.5, subd. (b).)

Here, Defendants filed the Motion within two years from entry of default on July 14, 2025, and default judgment on November 19, 2025. (Code Civ. Proc., § 473.5, subd. (a).) No proof of service was filed regarding the default or default judgment. Thus, the Court finds the Motion timely.

In support of the Motion, Defendants filed an affidavit from Uwagboe, who is also Cucamonga Holding's registered agent for service of process, showing under oath that Defendants' lack of actual notice in time to defend the action was not caused by avoidance of service or inexcusable neglect. Indeed, Uwagboe states that Uwagboe never received the Summons and Complaint in this action at any point at any address; the service attempts to addresses other than "818 Austin Avenue, Apt. 3, Inglewood, CA 90302" (the "Austin Avenue address") were not proper service addresses for either defendant; and Defendants did not avoid service. (Motion, Uwagboe Decl.) Further, Uwagboe declares under penalty of perjury that Uwagboe has no relationship to the following addresses that Plaintiff used for service of the Summons and Complaint: "43258 Sunny Lane, Lancaster" and "8726 S. Sepulveda Blvd. #E, Los Angeles." (Motion, Uwagboe Decl., ¶¶ 4-5.) As to the "4327 Sunny Lane, Lancaster" address, Uwagboe asserts this is Uwagboe's rental property, but Uwagboe has never resided

there, collected mail there, or lived or worked at this property as a dwelling, usual abode, or office or regular place of business. (Motion, Uwagboe Decl., ¶ 6.) Defendants also submit a copy of Cucamonga Holding's listing on the Secretary of State, which states Cucamonga Holding's registered agent for service of process is Uwagboe at the Austin Avenue service address. (Motion, Uwagboe Decl., Exh. B.)

Plaintiff's evidence provided in support of the Opposition fails to demonstrate that any of the service addresses besides the Austin Avenue address were proper service addresses for Defendants and, moreover, there is no evidence provided that service of the Summons and Complaint or any other documents in this matter were mailed to the Austin Avenue address. Further, Plaintiff's contention that Defendants evaded service is insufficiently supported. (Motion, pp. 3-4.)

Finally, Defendants served and filed a copy of a responsive pleading in conjunction with the Motion. (Code Civ. Proc., § 473.5, subd. (b).)

For all these reasons, the Court finds relief under Code of Civil Procedure section 473.5 is warranted, and the Motion is GRANTED.

III. Conclusion & Order

For the foregoing reasons, Defendants Cucamonga Holdings Inc. and Iwanfo Ken Uwagboe's Motion to Set Aside and Vacate Default and Default Judgment is GRANTED.

The defaults entered on July 14, 2025, and default judgments entered on November 19, 2025, are hereby VACATED and SET ASIDE.

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